held that as the trust fund in the hands of the trustees in the shape of cash did not necessarily imply a breach of trust the receipt was sufficient.

4. **Or implied.** — In what cases a power of signing receipts is *implied*, has never been satisfactorily ascertained. However, two principles appear to be the basis upon which most of the distinctions taken by the Courts have been founded.

5. **Direction to sell implies power in some one to sign discharges at time of sale.** — *First.* In the creation of a trust for *immediate* sale, it is implied that a legal and equitable discharge for the purchase-money shall be *signed by some one at the time of the sale.* There can be no conveyance of the estate without payment of the money, and there can be no such payment without a complete discharge. Should the settlor have contemplated a sale at a time when, as he must have known, the *cestuis que trust*, or some of them, were either not in existence, or not of capacity to execute legal acts, the intention must be presumed that the receipts of the trustees should be a release to the purchaser.

Balfour *v.* Welland. — Thus, where a deed was executed in India for payment of debts, with a proviso that creditors in India should be allowed six months to come in, and those in Europe eighteen months, and if any were under disability, they should be further allowed the like periods from the time the disability ceased, Sir W. Grant said, "The deed very clearly confers an *immediate* power of sale for a purpose that cannot be *immediately* defined. It is impossible to contend that the trustees might not have sold the whole property at any time they thought fit after the execution of the deed, and yet it could not be ascertained, until the end of eighteen months, who were the persons among whom the produce of the sale was to be distributed. If the sale might take place at a time when the distribution could not possibly be made, it must have been intended that the trustees should of themselves be able to give a discharge for the produce, for the money could not be paid to any other person than the trustees" (*a*).

(*a*) Balfour *v.* Welland, 16 Ves. 151, see 156.